NYAMBIZI MINING SYNDICATE
versus
MAKANIKA CHIMUPAZANJE
and
THE PROVINCIAL MINING DIRECTOR MASHONALAND CENTRAL N.O

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 24 November 2025 and 21 July 2026

Opposed Court Application

S Dzingira, for the applicant
D Mudadirwa, for the 1st respondent
F Chiumoko, for the 2nd respondent.

TAKUVA J: This is an application for a prohibitory interdict. The central issue for determination is whether the applicant has established the requirements for the grant of a final interdict in light of the parties' competing claims to the disputed mining rights.

Background Facts

This is an application for a prohibitory interdict in which the applicant seeks an order restraining the first respondent from carrying out mining activities on a disputed mining claim pending the resolution of a mining dispute by the second respondent.

The background facts are largely common cause. The first respondent pegged and registered the disputed mining claim in 1998. Some years later, the applicant was allocated an agricultural property upon which the disputed mining location is situated. Upon discovering the existence of gold deposits in or around 2012, the applicant registered a mining claim over the same area and was issued with a certificate of registration by the second respondent.

Following the registration of the applicant's claim, a dispute arose concerning the competing mining rights. The dispute was referred to the Provincial Mining Director in terms of the Mines and Minerals Act [*Chapter 21:05*]. According to the respondents, the Provincial Mining Director determined that the first respondent was the prior pegger and that the ground was not open for pegging when the applicant registered its mining location. The applicant appealed against that determination to the Minister responsible for Mines. The Minister

dismissed the appeal and upheld the finding that the first respondent held the superior mining rights.

The applicant disputes that the matter was lawfully resolved. It contends that the documents relied upon by the respondents purporting to demonstrate the resolution of the dispute are fraudulent and therefore incapable of producing any legal effect. It maintains that the dispute remains unresolved before the second respondent and that the first respondent's continued mining operations are unlawful. The respondents deny these allegations and maintain that the dispute was conclusively determined in favour of the first respondent.

Preliminary Issues

The first respondent raised three preliminary objections, namely *res judicata*, peremption, and improper relief. Since these objections, if upheld, are capable of disposing of the matter without resort to the merits, they must be considered first.

(a*) Res Judicata*

> The second respondent submits that the present application is barred by the doctrine of *res judicata*. It argues that the dispute concerning ownership of the mining rights over the disputed area was determined by the Provincial Mining Director in 2012. Dissatisfied with that determination, the applicant exercised its statutory right of appeal to the Minister of Mines and Mining Development. The Minister dismissed the appeal and upheld the first respondent's mining rights. It is submitted that the Minister's decision remains extant and has never been challenged by way of review or appeal.

The applicant does not deny that an appeal was lodged to the Minister. Indeed, paragraph 13 of the founding affidavit expressly acknowledges that such an appeal was pursued. The applicant's complaint is directed at the authenticity of certain documents relied upon by the respondents, alleging that they are fraudulent and that the dispute remains unresolved.

The doctrine of *res judicata* is founded upon the public policy consideration that there must be finality to litigation. A party should not be vexed twice in respect of the same dispute, nor should courts be called upon to repeatedly determine matters that have already been conclusively resolved.

In *Kamupariro* v *Musendo & Anor* HH 196/17, the court held that for the doctrine to apply, the earlier and subsequent proceedings must involve the same parties, the same cause

of action and the same relief sought. Similarly, in *Chimponda & Anor* v *Muvami* 2007 (2) ZLR 326 (H), MAKARAU JP observed that the previous determination must have finally disposed of the dispute between the parties. The same principles were reiterated in *Goredema* v *Magwenzi & Ors* HH 223/10.

Applying these principles to the present matter, it is apparent that the parties before the Minister were substantially the same parties before this court. The subject matter was the competing mining rights over the disputed mining location. Likewise, the substance of the relief sought was the determination of which party was entitled to exercise mining rights over the disputed claim

However, the court is not persuaded that the plea of *res judicata* is dispositive of the present proceedings. The applicant is not asking this court to determine afresh who owns the mining claim. Rather, it seeks an interdict pending what it alleges to be an unresolved dispute and contends that the Ministerial determination itself is tainted by fraud. Fraud, if established, has the potential to vitiate otherwise valid proceedings. Although I make no finding on the truth of those allegations, they prevent this court from concluding, at this preliminary stage, that the present proceedings are simply a repetition of the earlier dispute. The plea of *res judicata* therefore cannot be upheld.

(b) Peremption

The first respondent further argues that the applicant has perempted its right to challenge the Minister's determination. It is submitted that after the Minister dismissed the appeal in 2012, the applicant took no steps to review or appeal against that decision for approximately eight years. Such prolonged inaction, it is argued, constitutes acquiescence in the decision.

The doctrine of peremption is well established in our law. As stated in *Dhliwayo* v *Warman Zimbabwe (Pvt) Ltd & Ors* HB 12/22, an unsuccessful litigant who, by unequivocal conduct inconsistent with an intention to challenge a judgment, acquiesces in that judgment loses the right thereafter to attack it.

The question is whether the applicant's conduct amounts to unequivocal acquiescence.

The record demonstrates that following the Minister's decision, the applicant did not institute review proceedings, appeal to any competent tribunal or otherwise challenge the decision for several years. Instead, the applicant has now approached this court seeking an interdict whose practical effect would be to prevent the first respondent from exercising rights recognised by the Minister.

The lengthy delay in challenging the Minister's determination is a significant factor. However, peremption is not established merely by the passage of time. The decisive consideration is whether the conduct relied upon is wholly inconsistent with an intention to challenge the decision. The applicant now asserts that it never accepted the Minister's determination because it considers the documents evidencing that determination to be fraudulent.

Whether that allegation is ultimately sustainable is a matter for determination on the evidence. At this preliminary stage, I am unable to conclude that the applicant's conduct amounted to unequivocal acquiescence sufficient to found a plea of peremption.The point *in* l*imine* based on peremption accordingly fails.

(c) Improper Relief

The second respondent further contends that the relief sought by the applicant is incompetent. It argues that although the application is framed as one for a prohibitory interdict, it is in substance an attempt to challenge and nullify the decision of the Minister of Mines and Mining Development without invoking the proper review or appeal procedures provided by law. The submission is well founded.

It is common cause that the dispute concerning the competing mining rights was determined by the Provincial Mining Director. The applicant exercised its statutory right of appeal to the Minister, who dismissed the appeal and confirmed that the first respondent was the lawful holder of the disputed mining rights. That decision remains extant. It has neither been reviewed nor set aside by any court.

The practical effect of the order sought by the applicant would be to prevent the first respondent from exercising rights which derive directly from the Minister's decision. Put differently, granting the interdict would require this court to disregard the Minister's determination while leaving it legally intact. Such relief is not competent.

It is a fundamental principle of administrative law that an administrative decision exists in law and remains valid until it is set aside by a court of competent jurisdiction. A litigant who considers an administrative decision to be unlawful cannot simply ignore it and seek relief inconsistent with its legal consequences.

In *Associated Newspapers of Zimbabwe (Pvt) Ltd* v *Minister of State for Information and Publicity & Ors* 2004 (1) ZLR 538 (S), the Supreme Court held that administrative decisions are presumed to be valid and continue to have legal force until properly set aside by

a competent court. A party aggrieved by such a decision must invoke the recognised review procedures and cannot simply treat the decision as a nullity.

Similarly, in *Maseko* v *Maseko* 1992 (2) ZLR 99 (S), the Supreme Court reaffirmed the broader principle that a court order or decision remains binding and enforceable for so long as it exists. A litigant is not entitled to determine unilaterally that a decision is invalid and thereafter elect to ignore it. Until it is set aside through lawful process, it must be obeyed.

The same principle was emphatically stated by the Constitutional Court of South Africa in *Oudekraal Estates (Pty) Ltd* v *City of Cape Town & Others* 2004 (6) SA 222 (SCA), where Howie P observed:

> "Until the Administrator's approval (and thus the consequences of the approval) is set aside by a court in proceedings for judicial review it exists in fact and it has legal consequences that cannot simply be overlooked."

Although a South African authority, Oudekraal has repeatedly been cited with approval in Zimbabwean administrative law because it succinctly encapsulates the principle that unlawful administrative acts are not without legal effect until they are set aside by a competent court.

The applicant alleges that the Minister's determination is tainted by fraud and that certain documents relied upon by the respondents are fraudulent. Even if those allegations were ultimately capable of proof, they do not entitle the applicant to bypass the prescribed legal procedures. Fraud is a recognised ground of review. It does not entitle a litigant to ignore an existing administrative decision and seek collateral relief inconsistent with that decision.

What the applicant seeks through this application is, in substance, the suspension or nullification of the Minister's determination. That objective cannot be achieved indirectly through an application for an interdict. The proper course would have been to institute proceedings to review and set aside the Minister's decision. Only if that decision were successfully impugned could the applicant thereafter seek ancillary relief protecting its alleged mining rights. The courts have consistently held that a litigant may not do indirectly what the law requires to be done directly. To grant the present application would permit the applicant to circumvent the statutory dispute resolution mechanism established under the Mines and Minerals Act and render nugatory an administrative determination that remains legally operative.

The court is therefore satisfied that the present application is, in reality, a review disguised as an application for an interdict. The relief sought is procedurally incompetent. The point *in limine* based on improper relief is accordingly upheld.

Disposition

Having upheld the preliminary objection that the application constitutes an improper attempt to challenge an extant administrative decision through interdict proceedings rather than by review or appeal, it is unnecessary to consider the substantive merits of the application. The matter is disposed of on that basis alone.

Accordingly, it is ordered that

1. The matter be and is hereby dismissed.
2. Applicant to pay costs on an ordinary scale.

TAKUVA J: ……

Sande Legal Practice, applicant's legal practitioners
Gijima Gashirayi Gatawa Attorneys, first respondent's legal practitioners
Civil Division of The Attorney General, second respondent's legal practitioners